



Maritime &
Coastguard
Agency

Guidance

MGN 563 (M+F) Amendment 2 Guidance on the Merchant Shipping and Fishing Vessels (Port Waste Reception Facilities) Regulations 2003 and amendments

Updated 30 April 2024

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Summary

The purpose of revising this MGN is to update the methods of payment for exemptions.

1. Introduction/background

1.1 Directive 2000/59/EC of the European Parliament and of the Council on port reception facilities for ship-generated waste and cargo residues is implemented in the UK through the Merchant Shipping and Fishing Vessels (Port Waste Reception Facilities) Regulations 2003 (SI 2003/No: 1809) as amended by the Merchant Shipping and Fishing Vessels (Port Waste Reception Facilities) (Amendment) Regulations 2009 and the Merchant Shipping and Fishing Vessels (Port Waste Reception Facilities) (Amendment) Regulations 2016.

1.2 These Regulations are referred to in this MGN as “the 2003 Regulations as amended”. Directive 2007/71/EC is also implemented by the 2003 Regulations as amended. Please study these Regulations carefully.

This revised MGN has updated payment information. Previous updates to the MGN included the replacement of Annex A. Annex A contains the new waste notification form which is to be used by ships’ Masters for pre notification of delivering waste to port reception facilities. It also contains additional sub-categories of garbage and a column in which to record information about waste delivered in the last port of delivery, resulting from the publication of Directive EU 2015/2087 amending Annex II to Directive 2000/59/EC.

2. Applicability to Ports and Terminals

2.1 The 2003 Regulations as amended are applicable to any port (harbour) or terminal (terminals) within the UK. Every port authority and terminal operator is required by the Regulations to provide waste reception facilities adequate to meet the needs of ships normally using the port or terminal in question, without causing undue delay to ships. Many UK ports operate on a landlord (i.e. a terminal is rented from the port) basis and in such ports, it may fall to the terminal operator to produce a Port Waste Management Plan (PWMP) and have appropriate reception facilities. In new cases the Secretary of State will, upon a request from the port and terminal in question, provide a direction to the terminal to provide a PWMP

and appropriate reception facilities. However, most if not all terminals in this situation, already have plans and facilities. These will need to be updated in the light of the 2009 and 2016 amendments to the 2003 Regulations. Where responsibility is unclear, terminals should clarify the local situation with the port authority. We anticipate that in most cases there should be no disagreement about who should produce the PWMP but in cases where there is a dispute the Secretary of State has the powers to issue a direction determining who has to discharge the duties under the 2003 Regulations as amended.

3. Requirements for ships

3.1 The major requirements of the 2003 Regulations as amended are as follows:

- a) Ships must notify the port (harbour) authority or terminal operator (terminal) before entry into the port/terminal of the waste they will discharge, including information on types and quantities. The Waste Notification Form (WNF) is set out in Annex A. Ships do not have to notify about sewage if they intend to discharge it at sea in accordance with MARPOL.
- b) Ships must deliver their waste to port reception facilities before leaving the port/terminal, unless it is sewage or they have sufficient dedicated storage capacity for the waste that has accumulated and is expected to accumulate during the voyage to the next port of call.
- c) Ships must pay a mandatory charge to significantly contribute to the cost of port reception facilities for ship generated waste, whether they use them or not.
- d) Recreational craft authorised to carry, or designed to carry, no more than 12 passengers, and fishing vessels, must deliver their waste (other than sewage) to port reception facilities but are exempted from the requirement to notify before entry into port and the requirement to pay a mandatory charge.

4. Applicability to Ships

4.1 The 2003 Regulations as amended apply to all seagoing ships calling at or operating within a port (harbour) or terminal within the United Kingdom. The Regulations do not apply to any warship, naval auxiliary or

other ship owned or operated by a State and used, for government non-commercial service.

4.2 Regulation 11 (Notification) and Regulation 13 (Charges for ship generated waste) do not apply to fishing vessels or recreational craft authorised or designed to carry up to and including 12 passengers. Those ships which are not required to pay the mandatory fee but which want to deliver their waste must make local arrangements and pay for delivery of ship-generated wastes on a commercial basis, further information is available in Section 10.1.

5. Ships Bunkering/Mooring

5.1 In some cases, ships may call into a port's jurisdiction in order to moor and/or bunker without tying up at the ports facilities. In these cases, the port/terminal should consider what charges, if any, are paid by these ships when producing a plan. If these ships are paying port dues/charges and do not have exemptions, then they should also pay the mandatory element of the port waste reception facilities charges.

6. Dredgers, Survey Ships and comparable ships

6.1 Those ships which are not "bound" for another port/terminal, may apply to the MCA for an exemption in the same manner as any other ships if they can demonstrate scheduled, frequent and regular sailings with robust waste management practices at their home port or terminal.

Further details relating to requirements for ships

7. Notification

The information that ships must supply to ports/terminals is set in the Schedule of the Merchant Shipping and Fishing Vessels (Port Waste Reception Facilities) (Amendment) Regulations 2016 (which reflects the waste notification form set out in the original Directive and amendments found in Directive 2007/71/EC and the revised Annex in Directive 2015/2087). It includes information on the type of waste to be delivered, dedicated storage capacity, amount to be retained on board, the port/terminal at which the remaining waste will be delivered and the estimated amount of waste to be generated between notification and the next port of call.

7.1 The new WNF introduced in the 2016 Regulations aligns with the revised MARPOL Annex V Garbage categories and introduces a new column in which to record information about waste delivered in the last port of delivery. The new WNF is included at Annex A.

To reduce the burden of notification on ships, the UK has developed a CERS Workbook, which incorporates all the necessary fields from the WNF and combines them with the other pre-arrival information that ships are required to submit^[footnote 1]. The CERS Workbook can be downloaded from the government website at <https://www.gov.uk/government/publications/the-cers-workbook> (<https://www.gov.uk/government/publications/the-cers-workbook>).

7.2 An accurately completed WNF (CERS Workbook) should be sent to the port or terminal operator responsible for Port Waste Management Planning of the port or terminal being entered. It is expected that in most cases the completed WNF (CERS Workbook) will be provided through the ship's agent, although the obligation to notify falls on the Master of the ship. Ports and terminals must indicate in their PWMPs to whom the WNF should be submitted.

The WNF (CERS Workbook) information must be provided at least 24 hours before the ship is due to arrive, or if the destination port/terminal is not known until less than 24 hours before arrival, as soon as it is known. If the voyage is of less than 24 hours duration, notification must be made at the latest on departure from the previous port/terminal. In all such cases an estimation of waste generated during the final part of the voyage should be made. A copy of the WNF must be kept on board until at least the next port of call is reached and must be produced on request to the relevant maritime authorities in that port. Information on the retention of CERS workbooks can be found in MSN1899 (M+F). Any questions about how to complete the CERS Workbook can be directed to cers3@mcga.gov.uk.

In addition to notifying, ships must separately make whatever arrangements are necessary to land waste in accordance with the normal

practice of the port or terminal. If the ship wishes to land wastes other than those handled by the port/terminal then arrangements should be made with local contractors.

8. Delivery of waste

8.1 All ships must deliver all ship-generated wastes to a waste reception facility before they leave a port or terminal. These are wastes that are generated during the service of the ship and consist of garbage, sewage, oil, cargo residues and oily mixtures. The only exceptions to this are as follows:

- First, if the waste is sewage and the Master is not required to notify under regulation 11 of the 2003 Regulations as amended. This may be because the ship is not within the scope of regulation 11, or because it is within the scope, but it is intending to discharge at sea in accordance with MARPOL Annex IV.
- Or secondly, if the ship has sufficient dedicated storage capacity on board to hold the current waste and any additional waste that will be generated in the period until the ship reaches the port/terminal at which it proposes to deliver its waste. Masters must land waste when the foreseeable production of waste on board on the next voyage will exceed the remaining storage capacity. The WNF information supplied must demonstrate that the ship has sufficient storage capacity and that the proposed destination port/terminal has adequate reception facilities. Where there is any cause for concern that the destination port/terminal has inadequate facilities, the destination is unknown or the ship does not have sufficient capacity and could pollute during its next voyage, then an MCA surveyor may be tasked to investigate. If MCA officials believe there is a risk that waste could be disposed of into the sea, then (acting on behalf of the Secretary of State) they may direct a ship to deliver its waste before it leaves the port or terminal.

In the case of sewage, ships may deliver their sewage to the port or discharge into the sea in accordance with MARPOL (and any other local Regulations which may apply).

8.2 Under the 2003 Regulations as amended, waste has to be estimated by volume (cubic metres), but ships may, if convenient, additionally estimate the waste in weight (kilograms). Dual reporting will aid ships and ports especially when they have waste disposal arrangements based on the tonnage of waste.

8.3 It is recommended that ships adopt schemes to minimise their waste and to use recycling facilities where they are available. Information on such schemes can be found in the International Chamber of Shipping publication - “Guidelines for the Preparation of Garbage Management Plans incorporating a Model Plan” – available from available from ICS Shipping (<https://www.ics-shipping.org/resource/guidance-for-the-preparation-and-implementation-of-garbage-management-plans-3/>) . If a ship operates a waste segregation system, the operator should contact the port/terminal where waste will be landed to discuss the availability of segregated reception facilities.

9. Sewage

9.1 Ship-generated sewage can be discharged into the sea in accordance with MARPOL Annex IV - Sewage. Directive 2007/71/EC clarifies the position that ships may discharge sewage into the sea in accordance with Regulation 11 of Annex IV of MARPOL.

10. Mandatory charge

10.1 The requirement for ships to pay a mandatory fee to cover the costs of providing port waste reception facilities is inherent to both the Directive and the 2003 Regulations as amended. Under these Regulations, all ships other than fishing vessels and recreational craft authorised to carry, or designed to carry, no more than 12 passengers, must pay such a fee. Those ships which are not required to pay the mandatory fee but which want to deliver their waste must make local arrangements and pay for delivery of ship-generated wastes on a commercial basis. Ships with an MCA exemption under regulation 15(3) are not liable to pay the mandatory fee but will be liable to pay a fee if they make use of the facilities at the port or terminal for which the exemption applies (outside the terms of any contract their exemption is based upon). Ports and terminals must ensure that they have a charging system in place in order to levy such a fee.

11. Local arrangements

11.1 Where ships operate between two terminals with two different waste management plans there is ordinarily a requirement for the ship to notify, offload and pay a mandatory charge at each terminal. However in cases where a ship moves between two distinct terminals in close proximity with separate plans there is scope for a local arrangement to be reached whereby the traffic would only be expected to notify, land and pay at a single location. This arrangement is intended to cover specific localised issues such as bulk carriers offloading at one berth and then moving to another to load within the same port where both berths have separate waste management plans.

12 Regional arrangements

12.1 If a Port wishes to implement a different PWMP regime which devolves responsibility to terminals it must seek direction from the Secretary of State to do so. The port should write to the local Marine Office (MO) explaining the need for a change to the plan. If this information is satisfactory to the MCA they will issue a direction on behalf of the Secretary of State.

12.2 In some cases, in remote areas of the UK such as the smaller Scottish islands, the level and nature of use will indicate a need to produce a PWMP and provide adequate facilities. However, local factors would render this impractical and environmentally unsustainable. In these cases an option exists to implement regional waste management planning in the locality.

12.3 This provision is not intended to apply to the majority of ports/terminals and should not be seen as a substitute for adequate PWMPs – it is only applicable under special circumstances where the environmental and economic costs of port waste management planning clearly exceed the benefits.

12.4 These arrangements should assess the need for facilities at the remote location(s), the local and/or regional availability of such facilities, and arrangements that could be made with other ports and terminals. In particular, the practicality for users to divert to such facilities should be considered so as to avoid creating undue delay or discouraging users from handling their ship generated wastes in a safe and environmentally sustainable manner.

12.5 Regional arrangements should be sought with nearby ports who operate PWMPs. By liaising with these bodies, planners should seek to direct ships to the nearest locations which have facilities and indicate the

need for notification and payment at such locations. The provision of information at the facility should be assessed so that visiting ships will be aware of such arrangements and the requirement to handle their wastes in a responsible manner.

12.6 If a planner, port or local authority feels their facility comes into this category they should contact the ports with whom they wish to join in providing port waste reception facilities, plan such arrangements, and seek initial approval from the MCA. If accepted this information should be formalised in a PWMP and submitted to the MCA in the same manner as any other plan for formal approval.

12.7 Terminals who have the responsibility to operate PWMPs may also consider merging plans with other ports and terminals to create local port waste management arrangements as long as the requirements of the regulations are fulfilled.

13. Internal recharge/notification

13.1 In cases where the port/terminal is owned by the same company that operates the ships there is a possibility that internal recharge will occur whereby a ship is charged for waste reception provided, operated and paid for within the organisation. In these cases a mandatory charge should still be calculated and applied to ships but no actual funds need to be transferred within the organisation. This theoretical charge is necessary both for the upkeep and review of the plan, the reporting of information to the MCA and so that a charge is available in the event that a non-company owned ship arrives at the facility.

14. Port Waste Management Plans

14.1 Ports/terminal operators must amend and have their PWMP approved within 9 months after a significant change in the operation of the port under regulation 7(3)(a).

14.2 Ports/terminal operators must amend their PWMPs to include provisions for sewage when they submit their plan for approval as part of their usual 3-yearly update.

14.3 Detailed guidance for ports and terminals operators undertaking port waste management planning can be found in the Guide to Good Practice at Annex D. The local MO must be contacted when a PWMP is developed, amended or requires renewal. A completed MSF 5100 – Apply for survey and inspection of ships and fishing vessels (<https://www.gov.uk/government/publications/application-for-survey-of-ships-and-fishing-vessels-msf-5100>) should accompany the PWMP when submitted for approval.

15. Exemptions from the 2003 Regulations as amended

15.1 Under the 2003 Regulations as amended, the MCA may exempt ships from all three of the following requirements of the Regulations at one or more ports of call. These requirements are:

- Notify the port authority or terminal operator before entry;
- Deliver all ship-generated wastes; and
- Pay a mandatory charge at each port/terminal, regardless of use.

However, if the exempt ship lands any waste in a UK port/terminal to that port's/terminal's general waste facilities then it will be required to notify the port/terminal of this use, land the waste and pay the mandatory charge to the port/terminal.

15.2 When a ship is applying for an exemption, it should liaise with the port/terminal to discuss how such an exemption will affect their port/terminal dues which the ship will have to pay, as an exempted ship should not be charged the mandatory element of the port/terminal charges.

15.3 To be exempted, a ship must be engaged in “scheduled traffic with frequent and regular port calls” and there needs to be sufficient evidence of an arrangement ensuring the delivery of ship-generated waste (this now includes sewage) and payment of charges in a port along the ship's route. (Regulation 15(3)).

15.4 The MCA uses the following descriptions of “scheduled”, “regular” and “frequent” when considering whether an exemption will be granted:

Scheduled: The ship in question must have a published or planned list of times of departures and arrivals, between nominated ports or terminals. This schedule or equivalent can also take the form of

declarations of sailing times for example that the ship will leave daily at high tide. It should be noted that the ship's schedule should be set in advance and remain stable over the course of the year – a ferry with pre-planned timetables for the year that incorporates seasonal destinations would be acceptable while a ship whose route is dependent upon commercial concerns and is planned a week in advance would not normally be accepted as scheduled.

Regular: The ship must make repeated voyages between those nominated ports or terminals and no others (except in the case of an emergency, maintenance or for safety reasons)

Frequent: The ship must visit the port/terminal for which the exemption applies at least once a fortnight. This requires that a ship must demonstrate that it will visit the port/terminal at least twice within a calendar month and that these calls are spaced in such a way that there will be no more than 12 calendar days between each visit. For the other port/terminals on the route for which an exemption has not been requested there are no such requirements. For example, a ship applying at port A could call once a month at ports B and C and still qualify for exemption as long as the route was also scheduled and regular.

15.5 It is expected that ferries and regular short sea shipping will fall into this category. Ships applying for exemption must fulfil all three requirements discussed above before an exemption can be granted. It should be understood that the exemption system is intended to be restrictive and the majority of ships will be expected to fulfil the requirements of the 2003 Regulations as amended.

16. Applying for an Exemption

16.1 Applications should be made to the Clean Ship Operations Team at the address found at the end of this notice.

16.2 An application can be made for one or more ports/terminals along a ship's route. It is possible in some circumstances for a ship to be exempt at all ports of call on its route if it has a contractual arrangement for waste reception within one of those ports. It should be understood that this arrangement will require the ship to show robust waste management arrangements and provide full details of how the waste is to be landed, removed and paid for.

16.3 The application for an exemption should consist of the following:

a) A completed exemption application form (Annex B). Care should be taken to ensure that all sections of the form are completed fully, or the application is likely to be rejected.

b) Evidence of the scheduled, regular and frequent nature of the trade of the ship, and if there is a third or fourth port involved evidence of exemptions (or exemption application) for the ports in question. This evidence should take the form of schedules, lists of ports and frequency of visits at each location and any other applicable evidence that demonstrates compliance with the definitions of scheduled, frequent and regular.

c) Evidence of a contract with the port or company to which the waste is to be delivered or landed. This can take the form of a written agreement between the port and the ship in question, a contract arranging provision of waste services to the ship or a comparable arrangement. This can also include arrangements involving a ship which is calling into a port owned/operated by the ship's owner/operator where facilities are provided to the ships by the owner/operator directly. If waste is landed to another port under the mandatory delivery requirements of the 2003 Regulations as amended this should be communicated in writing outlining where each waste type is landed.

d) Receipts and other proof that this contract/arrangement is active. This should incorporate written evidence from waste contractors/ports, copies of waste transfer notes (if applicable) and copies of invoices.

e) Evidence that these arrangements are acceptable to the receiving port – for example correspondence with the port/terminal confirming that waste will be landed there, or an agreement with the port/terminal that the ship will use a waste contractor operating within the port.

16.4 Only one application should be made per ship – if multiple agents are involved in a ship's waste management practices then these should be consulted, and a single application made for all ports/terminals for which the ship requires exemption.

16.5 If a ship application has been rejected previously any reapplication should include the MCA reasons for rejection and indicate how these have been overcome in the new application.

17. Charges for applying for an Exemption

17.1 Each application is subject to an application charge for the review of the exemption and, if successful the issue of the certificate. Payment can be made by bank transfer or credit card. Please contact environment@mcga.gov.uk for further details. This charge is the equivalent of one hour of survey work and will change in accordance with the hourly survey rate. This charge is a fixed fee per ship and is non-refundable. In the event that the exemption is rejected the fee will not be returned. The full fee must be paid before any application for the exemption will be considered. Failure to pay the full fee or supplying relevant information will result in the application being delayed.

17.2 Full details of the charges can be found in Schedule 1 (Part P) of Statutory Instrument SI 2018 No 1104, The Merchant Shipping (Fees) Regulations 2018 as amended.

17.3 The MCA will contact each rejected ship in writing outlining the reasons for an exemption being rejected. The MCA will retain the paperwork for all rejected ships on file. If there is a concern that an application for an exemption has been rejected that fulfils the requirements of the 2003 Regulations as amended and the applicant considers the guidance in this MGN has been followed, then the applicant should contact the MCA in writing requesting further clarification of the rejection. If the MCA considers there to be reasonable grounds for a review of the decision on the exemption the MCA will reconsider the application.

17.4 On receipt of an exemption application the MCA will initially review the documentation to determine if it has been completed fully. It should be understood that incomplete applications are liable to be rejected immediately by the office and that no refund will be given. Therefore, it is in the interests of the applicant to ensure that the application is compliant with the requirements and is completed fully. If an application is judged to be lacking in minor details MCA Headquarters may opt to contact the applicant for clarification without rejecting the application but this is dependent upon the application being otherwise complete.

17.5 Exemptions will normally be valid for five years unless there is a change in the circumstances of the trade or route of the ship or a major alteration in waste management practices. For example, if a ship was employed on a scheduled, regular and frequent route between Hull and Rotterdam and had an exemption in Hull, the exemption would immediately become void if the route had to change to Hull and Oslo. If a ship alters its waste management practices significantly – for example landing waste to a different port, then the exemption would also cease to apply (Section 18.3). In this case a new application is required including the void exemption certificate. However, the following cases should be noted:

a) If the ship calls at a different port for reasons of force majeure, refuge, shelter, emergency maintenance or safety reasons on its scheduled journey, the ship would be subject to the internationally accepted arrangements for entry into that port.

b) If an exempt ship needs to be replaced temporarily by another comparable ship due to a breakdown, accident or scheduled maintenance, the exemption will still be valid and pass over to the new ship on that route for the period of replacement. The replacement ship should be identified when the application to the MCA for the exemption is made. The exemption letter from the MCA will state that the exempted ship may be replaced for up to 1 month for the above reasons. If the replacement ship remains on the scheduled route for longer than 1 month the MCA needs to be informed of the reasons for this, to assess whether a new exemption is needed.

c) Exempt ships may still opt to offload waste after notifying the port/terminal in the manner described for non-exempt ships and upon payment of the ports waste related charges. This may be necessary if a ship is weather-bound or unexpectedly laid up for example.

17.6 Once an exemption certificate is given for a port/terminal in the UK, the MCA will inform the relevant ports. The MCA must be notified in writing of any changes to the route of the ship or the arrangements for the disposing of or paying for waste disposal. Ships must carry a copy of the exemption certificate on board and the MCA will hold a database of ships that have been given an exemption.

17.7 If an exempted ship calls at a non-UK port within Europe on its route the MCA will contact the Port State point of contact to inform them of the exemption within the UK.

18. Renewal of an Exemption

18.1 Exemption certificates are valid for five years. Paragraph 17.5 above provides examples for when a certificate may cease to be valid. At the end of the five-year certificate period, a renewal certificate will be required, if you still wish the ship to be exempted from the regulations.

18.2 If the ship continues to operate under the same timetable and the same waste management handling procedures, as declared in the previously approved exemption application, then a renewal certificate can be requested by letter. The letter must state the above, together with which port the exemption is being applied for. The old exemption certificate must also be attached.

18.3 If there have been changes to the ship's trading pattern, waste management handling etc. a full exemption application will be required, as set out in section 16.

19. Inadequate Facilities

19.1 Under the 2003 Regulations as amended ports must provide adequate reception facilities to receive the types and quantities of waste from ships normally using the port or terminal. There is also a requirement under the International Convention MARPOL that all signatory States must provide adequate reception facilities. Plan holders must carry out ongoing consultation over this plan with port and terminal users and make information available on how to report alleged inadequacies of waste reception facilities.

19.2 Inadequacy reporting procedures for UK Flagged Ships: Where possible, the Master of a UK flagged ship faced with a lack of reception facilities should bring the alleged inadequacy to the attention of the port or terminal concerned immediately. If the problem is not resolved at the time to the Master's satisfaction, then the form at Annex C should be completed by the Master, ship-owner or agent and emailed to the MCA at the following address:

PWR Inadequacies,
Clean Ship Operations Team,
Maritime and Coastguard Agency,
Spring Place, 105 Commercial Road, Southampton, SO15 1EG.

E-mail: environment@mcga.gov.uk

19.3 Inadequacy reporting procedures for Foreign Flagged Ships: Where possible, the Master of a foreign flagged ship faced with a lack of reception facilities should bring the alleged inadequacy to the attention of the port or terminal concerned immediately. If the problem is not resolved at the time to the master's satisfaction, then the ship should contact their own flag, who should take appropriate action through the IMO.

20. Ship Non-Compliance

20.1 Where possible, the port or terminal operator faced with a ship that has not complied with the need to notify and/or offload waste should inform the nearest MO. Such ships may then be targeted by MCA for inspection and destination ports/terminals will be warned of their non-compliance. Masters and owners of ships that fail to comply with the requirements may be guilty of an offence and liable on summary conviction to a fine as provided for in regulations 18 (2), (3) and (4) of the 2003 Regulations as amended.

21. Further Guidance

21.1 Any questions about this MGN should be referred in the first instance to MCA's Clean Ship Operations Team, environment@mcga.gov.uk.

More information

Clean Ship Operations Team
Maritime and Coastguard Agency
Bay 2/23
Spring Place
105 Commercial Road
Southampton
SO15 1EG

Telephone: +44 (0)203 81 72448

Email: environment@mcga.gov.uk

Website: www.gov.uk/mca (<https://www.gov.uk/mca>)

Please note that all addresses and telephone numbers are correct at time of publishing.

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1. Further information can be found within MSN 1899 (M+F) Vessel traffic monitoring notification and reporting requirements for ships and ports and The Merchant Shipping (Vessel Traffic Monitoring and Reporting Requirements) Regulations 2004 (SI 2004/2210).



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